

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Date Filed:

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ROHAN MCINTOSH,

Index No.

Plaintiff,

SUMMONS

-against-

Plaintiff designates
Queens County as the
place of trial.

THE CITY OF NEW YORK, POLICE OFFICER
HOFFMAN, and POLICE OFFICER WARD,

Defendants.

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your Answer, or if the complaint is not served with the summons, to serve a notice of appearance on plaintiff's attorney within twenty (20) days after service of this summons, exclusive of the day of service, (or within thirty (30) days after service is complete, if this summons is not personally delivered to you within the State of New York); and in case of your failure to answer, judgment will be taken against you by default for the relief demanded hereto.

Dated: New York, New York
July **28**, 2017 Yours, etc.

_____/s/_____
Chukwuemeka Nwokoro
Nwokoro & Scola, Esquires.
Attorneys for the Plaintiff
44 Wall Street- Suite 1218
New York, NY 10005
(212) 785-1060

DEFENDANTS ADDRESS:

Corporation Counsel of the City
Of New York
100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Date Filed:

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ROHAN MCINTOSH,

Index No.

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, POLICE OFFICER
HOFFMAN, and POLICE OFFICER WARD,

Defendants.

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Plaintiff, ROHAN MCINTOSH, by his attorneys, NWOKORO & SCOLA, ESQUIRES,
respectfully alleges upon information and belief as follows:

1. At all times mentioned, Plaintiff ROHAN MCINTOSH was a resident of Queens County, City and State of New York.
2. At all times mentioned, the CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. That on or about September 19, 2016 and within 90 days after the claim herein arose, the plaintiff served a Notice of Claim in writing sworn to on their behalf upon the defendant CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant City of New York, of the nature, place, time and manner in

which the claim arose, the items of damage and injuries sustained so far as was then determinable and the claim was assigned the claim number 2016PI027469 by the New York City Comptroller's Office.

4. At least thirty (30) days have elapsed since the service of the notices of claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The plaintiff has complied with the request of the municipal Defendants for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendant POLICE OFFICER HOFFMAN, (Shield Number 29755, first name currently unknown to the plaintiff), and POLICE OFFICER WARD, (Shield Number 4696, first name currently unknown to the plaintiff) are police officers of the Defendant City of New York employed by the New York City Police Department (NYPD), assigned to the 105th Precinct of the NYPD, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, THE CITY OF NEW YORK.

FACTS

7. On June 21, 2016, at approximately 11:15 p.m., plaintiff was driving back to his home at 191-20 115th Drive, St. Albans, New York. Plaintiff was approximately one block from his residence when he noticed a black Chevy Impala driving ahead of him.
8. As plaintiff parked his vehicle in front of his home, the black Impala made a u-turn, turned around and came to a stop immediately behind plaintiff's now parked vehicle. Three men who appeared to be plain clothed police officers exited the Impala and approached the plaintiff as plaintiff opened his car door and was preparing to exit his own vehicle.
9. The three men stood around the plaintiff, two to his left and one to his right, and they asked him for his license and registration. Plaintiff immediately complied and handed over his driver's license and vehicle registration. Plaintiff then politely asked the officers why they needed his license and registration.
10. Defendant Hoffman appeared to be angered by plaintiff's question. He stated to the plaintiff, "you are being a smart ass, ok. Get out of the vehicle. Keep your hands up". After ordering plaintiff out of the vehicle with his hands up, the officers told plaintiff they were asking him

questions because, "you are being a smart ass. You are trying to be a tough guy".

11. Defendants then asked the plaintiff if he had any weapons on him. Plaintiff replied in the negative, after which the defendants searched the plaintiff by patting him down and checking his pockets.
12. The defendants then asked the plaintiff, "do you mind if I search your car", to which plaintiff replied that he did mind and that he did not consent to his car being searched. After this exchange, defendant Hoffman asked the plaintiff, "do you feel like getting arrested?", and then ordered the plaintiff to put his hands behind his back, handcuffed the plaintiff and took plaintiff to the back of plaintiff's vehicle. Plaintiff complained that the handcuffs were too tight, at which both Officer Hoffman and Officer Ward just laughed.
13. With the plaintiff handcuffed and placed to the rear of his vehicle and leaning on his vehicle, Officers Hoffman and Ward then proceeded to search plaintiff's vehicle for a period of approximately 45 minutes. During this period, plaintiff complained to the defendants that his wrists were hurting because the handcuffs were too tight, but his complaints were ignored.
14. After this search, another unmarked police vehicle arrived bringing three more police officers to the scene. The three new police officers were in uniform and one of these uniformed Police Officers issued

plaintiff a summons for an expired temporary vehicle license. Officer Hoffman then approached the plaintiff and stated to him, "I am going to uncuff you now and issue you a summons for an expired temporary tag". Officer Hoffman released the plaintiff and all the officers then drove away.

15. Upon checking his vehicle, plaintiff found that \$150.00 that he kept in the arm-rest of the vehicle was missing. Plaintiff then went to the 105th Precinct Station House to complain about the illegal search, arrest and theft. Plaintiff spoke to Captain Fauvell, who ignored his complaint and refused to take plaintiff's report regarding the missing money.
16. While he was at the precinct attempting to make a complaint, plaintiff saw defendants Hoffman and Ward walking into the Precinct. Officer Ward noticed the plaintiff, came up to him and again asked him for his identification document. Plaintiff was kept waiting for approximately another two hours, until about 3:30 a.m., when plaintiff's identification was returned to him by Captain Fauvell and he was then able to leave the Precinct.
17. The search and seizure of the plaintiff on or about June 21, 2016, was without probable cause or reasonable suspicion.
18. The search of the plaintiff's vehicle on or about June 21, 2016, was without probable cause or reasonable suspicion.

19. That the search, seizure, handcuffing and illegal detention of the plaintiff was motivated by malice and a desire on the part of Officers Hoffman and Ward to intimidate and harass the plaintiff.
20. That at no time prior to or during the above events was there probable cause to arrest the plaintiff, handcuff the plaintiff, detain the plaintiff, or search the plaintiff or his vehicle nor was it reasonable for the defendants to believe that such probable cause existed.
21. That on or about January 10, 2017, the summons for an expired temporary vehicle license, was dismissed.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault and Battery)

22. Plaintiff re-alleges all the allegations contained in all preceding paragraphs of this complaint with full force and effect as though set forth at length herein.
23. On or about June 21, 2016, at 191-20 115th Drive, St. Albans, New York, defendants Hoffman and Ward, jointly and severally in their capacity as police officers wrongfully touched, grabbed, handcuffed and seized the plaintiff, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the defendants have legal cause to grab, handcuff, seize, or touch the plaintiff, nor did the plaintiff consent to this illegal touching, nor was it privileged by law.

24. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages against OFFICER HOFFMAN, OFFICER WARD and THE CITY OF NEW YORK in an amount to be proven at trial against each of the defendants, individually and severally.
25. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant CITY OF NEW YORK is vicariously liable for the defendant officers acts described above.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest)

26. As and for a second cause of action: Plaintiff repeats and re-alleges preceding allegations of this complaint with full force and effect as though set forth at length herein.
27. On or about June 21, 2016, the defendants Hoffman and Ward, without a lawfully obtained warrant order or other legal process, and without any legal right, wrongfully and unlawfully arrested the plaintiff and restrained him and his liberty for 45 minutes. The defendant intentionally confined the plaintiff without his consent and the confinement was not otherwise privileged by law, and at all times, the plaintiff was conscious of his confinement.

28. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against OFFICERS WARD and HOFFMAN.
29. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant CITY OF NEW YORK, is vicariously liable for the defendant officers actions described above.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Imprisonment)

30. Plaintiff repeats and re-alleges all the allegations contained in the preceding paragraphs of this complaint with full force and effect as though set forth at length herein.
31. On or about June 21, 2016, the defendants HOFFMAN and WARD, jointly and severally, without any valid warrant, order or legal process and without any legal right, wrongfully and unlawfully imprisoned the plaintiff and restrained his liberty. The defendants intentionally confined the plaintiff without his consent and the confinement was not otherwise privileged by law and at all times, plaintiff was conscious of his confinement.
32. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial.

33. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant CITY OF NEW YORK, is vicariously liable for the defendant officers actions described above.

FOURTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False arrest/imprisonment: unlawful search and seizure deprivation of rights in violation of the 4th and 14th amendments, brought pursuant to 42 U.S.C. 1983)

34. By this reference, plaintiff incorporates each and every allegation and averment set forth in the preceding paragraphs of this complaint as though fully set out herein.
35. In the arrest, detention and imprisonment of plaintiff on or about June 21, 2016, defendants, acting under color of state law, deprived the plaintiff of his right to be free from unreasonable search and seizure and arrest without probable cause or reasonable suspicion as required by the Fourth and Fourteenth Amendments, therefore, defendants are liable for violation of 42 U.S.C. Section 1983 which prohibits the deprivation under color of state law of rights secured under the United States Constitution.
36. The defendants subjected the plaintiff to such deprivations, either in a malicious or reckless disregard of the plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments to the United States Constitution.

37. As a result of the aforesaid violation, plaintiff has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.
38. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each defendant, individually and severally.
39. The defendant officers were at all material times acting within the scope of their employment and as such, the defendant, the CITY OF NEW YORK, is vicariously liable for the defendant officers acts as described above.

FIFTH CAUSE OF ACTION
(Monell Claim)

40. Plaintiff incorporates, repeats and re-alleges all of the preceding allegations of this complaint with full force and effect as though set forth at length herein. This cause of action is brought pursuant to 42 U.S.C. § 1983 for violations of the Fourth and Fourteenth Amendments to the United States Constitution. It applies to the City of New York and police officers sued in their official capacity and should be characterized as a "Monell" claim).

41. Defendants CITY OF NEW YORK has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest and/or search of individuals warrant, especially with respect to the principle and policy that the arrest should be based on probable cause.
42. The City of New York was negligent and/or deliberately indifferent by failing to implement a policy with its police department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking.
43. The City of New York is negligent or has acted with deliberate indifference due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking: Probable cause must be present before an individual such as the plaintiff herein can be arrested.
44. The City of New York is negligent or has acted with deliberate indifference due to its failure to implement a policy with its Police Department that prohibits, and punishes Police Officers for manufacturing false evidence against criminal defendants.

45. The foregoing acts, omissions and systemic failures are customs and policies of the CITY OF NEW YORK which caused the police officers to falsely arrest, illegally seize and search, maliciously prosecute, improperly manufacture evidence against, and suborn false testimony against the Plaintiff, under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.
46. The defendant's deliberate indifference is further evident by and through the lack of meaningful investigation and punishment of transgressors. Upon information and belief, the NYPD Internal Affairs Bureau (IAB) investigations rarely lead to administrative trials, and when they do, and the charges are somehow sustained, the punishment is minimal, thereby lacking any deterrent effect.
47. Upon information and belief, officers operated with the tacit approval of their supervisors and up the ranks, with an "ends justifying the means" mentality. This mentality includes a custom or practice of stopping, or stopping and frisking first, then establishing reasonable suspicion after the fact. Use of force was viewed as collateral damage of the stop and frisk policy established by the NYPD.
48. Police officers were rarely, if ever brought up on charges, investigated or disciplined for their over aggressive attempts to solve crimes including manufacturing evidence, and brutalizing witnesses.

49. Precinct commanders and supervisors were rarely, if ever, investigated, disciplined, reassigned or retained due to their own observations of misconduct, review of data or complaints from citizens for 4th Amendment violations, illegal search and seizure, illegal entry into citizen's homes without a warrant, false arrests, witness intimidation, submitting false police reports and other constitutional rights violations occurring in their command, under their watch.
50. Defendant the City of New York by its police department, acted with deliberate indifference to the need to reform their customs and practices which included as stated herein, rampant examples of constitutional violations of its citizenry, thereby lending tacit approval to the unconstitutional conduct. Upon information and belief, the City, the police commissioner and/or the named defendants herein, were more interested in meeting "numbers" than they were safeguarding the constitutional rights of its citizens.
51. The acts of police officers who violate the civil and constitutional rights of the citizens of New York routinely go unreported by fellow police officers, not investigated by their superior officers, and consequently their acts, actions, omissions go unpunished. Failure to intervene and report is the norm, not the exception. Consequently, the acts of police officers who use excessive force, profile citizens racially, make false arrests, make false charges, falsely detain citizens and make false

reports against them, make warrantless entry into the homes of citizens, etc, are condoned by other officers present, their supervisors, precinct commanders, and the police commissioner.

52. The City of New York and NYPD's tolerance for brutality, excessive force, illegal and/or retaliatory arrests, and the emphasis to "come down hard on quality of life infractions" leads to a systemic practice and policy wherein City officials are tolerant, both outwardly and inwardly of police brutality, silence in the face of such brutality and/or illegal stops, frisks, searches, seizures and/or arrests, warrantless entry into citizen's homes and quota arrests. A systemic practice where officers who report said misconduct are not viewed as "good cops" but rather as outcasts and "snitches" and are isolated, ostracized and often transferred, thereby perpetuating the illegal conduct of other officers.
53. There is a pervasive pattern, custom and de facto policy of the City of New York to allow its police officers to violate the constitutional rights of citizens, as reported in the New York Daily News expose of Sunday May 19, 2013 where the Daily News reported a litany of unconstitutional actions taken by the NYPD teams of police officers that have been the subject of lawsuits and departmental hearings but resulted in virtually no reprimands to the offending officers, rather, one officer was promoted to a Lieutenant even when his actions were known to be unconstitutional.

54. The defendants subjected the plaintiff to these deprivations, either in a malicious or reckless disregard of the plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments to the United States Constitution.
55. The direct and proximate result of the Defendant's acts are that the plaintiff has suffered severe and permanent injuries of both of a physical and psychological nature, was forced to endure pain and suffering, all to his detriment.

WHEREFORE, plaintiff, ROHAN MCINTOSH, demands judgment against the defendants, jointly and severally, in an amount of damages which exceeds the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction in the amount determined upon trial of this action.

Dated: New York, New York
July **28**, 2017

_____/s/_____
Chukwuemeka Nwokoro
Nwokoro & Scola, Esquires
Attorney for the Plaintiff
44 Wall Street, Suite 1218
New York, New York 10005
(212) 785-1060

VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK)

I, the undersigned, an attorney duly admitted to practice law in the State of New York, under penalties of perjury do affirm;

That I am the attorney of record for the plaintiff in the within matter and make this affirmation in accordance with CPLR 3020. I have read the within SUMMONS AND VERIFIED COMPLAINT and know the contents thereof to be true to your affirmant's own knowledge, with the exception of those matters therein stated to be alleged upon information and belief. Your affirmant bases his belief regarding those matters upon the contents of the file and conversation with the plaintiffs.

This verification is made by your affirmant and not by the plaintiff for the following reason; plaintiff resides in a different County than where your affirmant maintains an office.

Dated: New York, New York
July **28**, 2017

_____/s/_____
CHUKWUEMEKA NWOKORO